

DKverse Publication and Commercialization Playbook

Prepared for Rafael Minuti - June 25, 2026

Draft for business discussion only. This document is not legal advice and should be reviewed by qualified counsel before use.

Executive recommendation

The cleanest structure is not a pure open-source release. It is a public, source-available release that allows study, forks, prototypes and contributions, while reserving commercial operation for a signed commercial adoption agreement. This reduces friction for builders and keeps Rafael economically protected without taking operational responsibility for the business.

Recommended economics

Item	Recommended position
Commercial trigger	No payment until public commercial launch and annual net revenue exceeds USD 50,000, or local currency equivalent.
Annual royalty	2.0% of Adjusted Annual Net Operating Profit for 10 years from commercial launch.
Exit fee	0.50% of Net Exit Proceeds if the DKverse-based business is sold during the 10-year royalty term.
Alternative buyout	At operator option, a negotiated one-time buyout may replace future royalties; suggested floor: 5x average royalties paid over the prior 3 fiscal years.
No equity / no management	Rafael receives only passive economic consideration. No board seat, no control, no agency, no partnership.
Liability shield	Operator is solely responsible for product, users, payments, data protection, consumer claims, taxes, card authenticity, fraud and regulatory compliance.

Why this is not greedy

A 2% profit royalty for 10 years is lighter than a perpetual 3% royalty and avoids frightening serious operators or investors. The 0.50% exit fee is modest, but it prevents the obvious workaround: build the business, sell it, and leave the original creator with no future royalty base.

Why profit needs adjustment

Pure net profit is easy to reduce through inflated founder compensation, related-party expenses, discretionary marketing, financing costs, unusual one-off charges or aggressive tax planning. The agreement therefore uses Adjusted Annual Net Operating Profit: revenue from the business minus reasonable, documented, arms-length operating expenses, excluding non-arms-length, excessive, undocumented, non-recurring, financing, tax and extraordinary deductions.

Implementation checklist

- 1 Freeze and backup the current repository, including commit history, screenshots, architecture notes and any original design files. Keep an offline dated copy as evidence of authorship.
- 2 Remove secrets and sensitive data before publication: API keys, tokens, .env files, database dumps, private user data, test credentials, payment keys and analytics IDs.
- 3 Remove or replace third-party assets that you do not own or cannot license: logos, card images, copyrighted artwork, datasets, fonts and proprietary APIs.

- 4 Add LICENSE.md using the DKverse Source-Available Non-Commercial License. Do not use MIT, Apache or GPL if the goal is to preserve commercial royalty rights.
- 5 Add README.md with a clear commercial-use notice and contact instructions. Avoid marketing the project as open source; call it source-available.
- 6 Add CONTRIBUTING.md so contributors grant Rafael the rights needed to reuse and commercialize their contributions.
- 7 Add COMMERCIAL_ADOPTION_AGREEMENT.pdf as the standard template to be signed before any production or commercial launch.
- 8 Add NOTICE.md reserving DKverse, DKvault, DKmarket, DKarena, DKchat, logos and brand assets.
- 9 Set the repository public only after the above files are committed in the same initial public release.
- 10 If a third party wants to operate the business, require signature of the Commercial Adoption Agreement before any public commercial launch.
- 11 Keep Rafael out of operations: no login access to production systems, no approval of users, no payment processing, no customer support, no operational control.
- 12 Ask counsel to review the template before accepting a serious operator, especially for governing law, tax withholding, enforceability and international collection.

Practical liability firewall

- Use only passive royalty language. Do not describe Rafael as a partner, founder of the operator, co-manager, guarantor, adviser, officer or shareholder.
- The operator must be solely responsible for regulatory compliance, consumer protection, privacy/data protection, cybersecurity, payments, fraud prevention, taxes, disputes and card authentication.
- The license must say that the software is provided as-is, with no warranty and no support obligation.
- The operator must indemnify Rafael against claims arising from operating the platform.
- The operator must not use Rafael name, image or reputation to imply endorsement unless separately authorized in writing.

Recommended file structure for GitHub

- README.md
- LICENSE.md
- NOTICE.md
- CONTRIBUTING.md
- COMMERCIAL_ADOPTION_AGREEMENT.pdf
- SECURITY.md
- docs/architecture.md
- docs/commercial-use.md